



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 11, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16111
(THIRD REVISION)

EXPIRATION DATE: 2027-07-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Allen Institute
Seattle, WA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a specification cylinder containing oxidizing compressed gas with the valve opened and connected to a system designed to keep tissue samples viable for research use. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.24(b)(1) in that no identifiable release of hazardous materials to the environment is authorized during transportation and § 173.24(f)(1)(i) in that packagings must be closed during transportation, except as provided herein.
5. BASIS: This special permit is based on the application of Allen Institute dated July 17, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023074887

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Compressed gas, oxidizing, n.o.s.	2.2	UN3156	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are DOT Specification cylinders that are authorized for the hazardous materials in paragraph 6. of this special permit and that are in conformance with all applicable requirements of the HMR including but not limited to marking, filling, and periodic requalification. The cylinders are secured within equipment described as a live tissue transport system. The transport system must be in accordance with the information in the application for special permit on file with the Office of Hazardous Materials Safety. The cylinder is connected to a regulator with tubing that allows the gas to flow within the tissue transport system. Negligible amounts of excess gas (undetectable with standard detection equipment) are vented to the environment.

b. OPERATIONAL CONTROLS:

- (1) The outside of the tissue transport container must be marked "DOT-SP 16111".
- (2) With the exception of the compressed gas, the live tissue transport system does not contain any regulated materials subject to the requirements of the HMR.
- (3) The live tissue transport system must be transported by private or contract carrier in a motor vehicle used exclusively to transport similar or compatible materials for medical or research purposes. No combustible materials may be transported in the vehicle with the tissue transport system.
- (4) If the live tissue transport system is transported in a closed motor vehicle, the vehicle must carry a portable oxygen sensor in order to warn the driver of any increase in oxygen concentration along with procedures/ training on appropriate response measures for such alarms.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR § 171.15 - Immediate notice of certain hazardous materials incidents, and

171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti